

		decisions that reflect and/or create policy for Defendants.” (FAC, ¶ 34.) At the pleading stage, assuming the truth of the allegations, the allegations are sufficient to show that Bales is a managing agent. It is alleged that Bales developed and implemented hospital security policies and exercised control over the entire security department for Hoag, such that Bales exercised authority over one aspect over the general principles and rules which guide Hoag, i.e., corporate policy. These allegations are distinguishable from Cruz v. HomeBase (2000) 83 Cal. App. 4th 160, which Defendant contends is directly on point. In Cruz, the Court of Appeal found that a supervisor subordinate to a store manager in a single outlet of a multi-store chain who supervised only a few employees and had authority over only one narrow area of security for the single store’s multifaceted operations was not a managing agent. (Cruz v. HomeBase (2000) 83 Cal. App. 4th 160, 168.) Here, Bales is alleged to be the Manager of Security for Hoag’s entire hospital and exercised independent judgment in development and implementing hospital security policies, as well as exercised control over the entire security department and made significant decisions affecting safety throughout the hospital. The Court GRANTS Plaintiff’s request for judicial notice of Plaintiff’s responses to Defendant’s Requests for Admission, Set One. Defendant to file an Answer within 10 days. Plaintiff to give notice.
104	Barkley vs. H-Mart Supermarket 25-01461644	Motion for Leave to File Amended Complaint Plaintiff seeks an order allowing him to file an amending pleading. While it appears Plaintiff correctly served Defendant with this motion and a “Amendment to the Complaint”

	is attached to the motion, the same problems otherwise exist as with prior motions for leave. First, Plaintiff erroneously cites to the FRCP, which is not relevant or controlling in this state court proceeding. Second, the Motion does not comply with Cal. Rules of Court, Rule 3.1324. There is no accompanying declaration setting forth the effect of the amendment, explaining why the amendment is necessary and proper, or describing when the facts giving rise to the amended allegation were discovered and why the request was not made earlier. The proposed amendment appears to be Plaintiff raising his damages claim from \$400,000 to \$8M. As indicated above, no reasoning is set forth in a declaration, nor the motion itself. The Motion is therefore DENIED. As a reminder to Plaintiff, Pro Pers must abide by the Civ. Pro. Code and Cal. Rules of Court. (See Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 [“pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure”].) That is, the fact that plaintiff is in pro per does not afford him special treatment. (Nwosu v. Uba (2004) 122 Cal.App.4th 1229, 1246-1247.) Moreover, the definition of a vexatious litigant is one who, “In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” (CCP§391(b)(3)) To the extent Plaintiff files another defective Motion for Leave to Amend, the Court may consider deeming Plaintiff a vexatious litigant herein. Clerk to give notice.
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